

25NWLC71527 25NWLC71527

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-09-24

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Case Number: 25NWLC71527 Hearing Date: September 24, 2026 Dept: Y

25NWLC71527: CAPITAL ONE N.A. vs ROCKET A MINJIZZLE

Tentative Ruling:

The Court has read and considered the Motion to Set Aside and Vacate Judgment ("Motion") filed by Defendant Rocket Minjizzle ("Defendant") on August 24, 2026 and Plaintiff's opposition filed on September 4, 2026.

The Court notes that Default was entered by the Clerk on May 18, 2026 and Default Judgment was entered by the Clerk on May 28, 2026.

Evidence Code § 647 creates a rebuttable presumption of valid service when, as here, a registered process service files a Proof of Service with the Court. The individual questioning the validity of service must present sufficient evidence to demonstrate that service did not occur as stated in the Proof of Service. Evid. Code §§ 647, 660.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on December 30, 2025 creating a presumption of service under Evidence Code section 647. The Proof of Service states that the Summons and Complaint were personally served on Rocket A Minjizzle.

Defendant argues that she was not personally served with the Summons and Complaint. She has submitted a declaration from her minor daughter (age 15) who states under penalty of perjury that the process server served her with the Summons and Complaint. The Proof of Service states "personal service" on the Defendant, which is incorrect. There was no personal service. Further, Code of Civil Procedure section 415.20(b) governs substituted service and requires, among other things, that the summons and complaint be left with a competent member of the household who is at least 18 years of age.

On this record, the Court finds that Defendant has rebutted the presumption of service.

Pursuant to Code of Civil Procedure §§ 473(d) and 473.5, the Court will GRANT Defendant's Motion to Set Aside and Vacate the Default Judgment.

The Court grants Defendant 30 days leave to file a responsive pleading with the Court and serve it on Plaintiff. The Court encourages the parties to discuss the identity theft claim that Defendant has raised in her motion and conduct a fraud investigation if necessary.

The Court will set a OSC Re Status of Pleadings on September 17, 2027 at 8:30 a.m. in Department Y of the Norwalk Courthouse. The Court anticipates that this date will become the trial date when the responsive pleading is filed by Defendant.

Clerk to give notice.